

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 12/02/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: L23-00312

CASE NAME: BANK OF AMERICA N.A. VS. PARDEEP SINGH

*HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT FILED BY PLAINTIFF ON 8/7/25

FILED BY:

TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion to Vacate Dismissal and Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

The Court previously continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice of the hearing has properly been given to the Defendant. Plaintiff was ordered to give notice of this continued hearing date on the pending motion. See Order entered November 10, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. **An Amended Notice of Motion now appears on the Court's docket with a filing date of October 3, 2025, with notice of the prior October 28, 2025 date. However, no further Amended Notice of Motion appears with notice of the current December 2, 2025 hearing date.**

Background

The parties entered into that certain settlement agreement filed on April 21, 2023 (the "Settlement Agreement"), the terms of which included payment by the defendant Pardeep Singh ("Defendant") in the amount of \$21,227.71, plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶5. Defendant failed to cure after notice. *Id.* at ¶6 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$14,102.71 due and owing, plus costs of \$518.50, for a total of \$14,621.21. See Supporting Declaration, ¶¶7-8.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was served**

with notice of the new hearing date.

2. Subject to paragraph no. 1 above, the Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to paragraph no. 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$14,102.71, plus costs of \$518.50, for a total judgment of \$14,621.21.
4. Subject to paragraph no. 1 above, Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L23-03178

CASE NAME: DISCOVER BANK VS. CARL CASSADAY

***HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO CCP 6646**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Plaintiff Discover Bank ("Plaintiff") filed a Motion to Enter Judgment on September 24, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 2, 2025.

Background

The parties entered into that certain settlement agreement filed on October 18, 2023 (the "Settlement Agreement"), the terms of which included payment by the defendant Carl Cassaday ("Defendant") in the amount of \$8,845.32, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 24, 2025 ("Supporting Declaration"), ¶15 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the amount of \$11,015.34 plus costs in the event of a default. *Id.*, **Exhibit A**, ¶¶2-6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶17. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶16.

After credit for amounts paid, there remains \$9,215.34 due and owing, plus costs of \$505.70. See Supporting Declaration, ¶¶17.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the hearing information at the time of service or if separate notice of the hearing date was otherwise subsequently given.***
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$9,215.34, plus costs of \$505.70., for a total of \$9,721.04.
4. Plaintiff to submit revised forms of order and money judgment which appropriately designate plaintiff's current legal name (e.g. "Capital One, N.A., successor by merger to Discover Bank"). If no order for leave to amend plaintiff's name has been previously been entered, leave is hereby granted and the operative complaint deemed so amended. The proposed order shall recite such amendment. The Court takes judicial notice of the "NOTICE OF PLAINTIFF MERGER" filed in multiple pending cases before the Court regarding the merger.

3. 9:00 AM CASE NUMBER: L23-03444

CASE NAME: NAVY FEDERAL CREDIT UNION VS. TIMOTHY INGALLS

*HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM MATTERS ADMITTED FILED BY PLN ON 08/19/2025

FILED BY: NAVY FEDERAL CREDIT UNION

TENTATIVE RULING:

Plaintiff Navy Federal Credit Union ("Plaintiff") filed a Motion to Deem Matters Admitted and Monetary Sanctions on August 19, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on December 2, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Timothy B Ingalls ("Defendant") with a Requests for Admission (Set One). See Declaration of Fahad Hassan filed August 19, 2025 ("Supporting Declaration"), ¶2 and **Exhibit A** thereto (the "RFAs"). The RFAs were served on November 27, 2023 by mail. *Id.* at ¶12*.

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before January 2, 2024 (30 days from and after November 27, 2023 was December 27, 2023 and five calendar days thereafter fell on January 1, 2024, a court holiday, which would have extended the deadline to January 2, 2024). No responses were

received by that deadline. See *id.* at ¶13 and **Exhibit B**. Despite meet and confer efforts, no responses were received through the time of the filing of the motion. See *id.* at ¶14.

*Although the Supporting Declaration references an attached Proof of Service, no such Proof was attached and the relevant sentence erroneously refers to “...those Interrogatories...”

23 2. On November 27 2023, our office served Request of Admissions on
24 Defendant TIMOTHY B INGALLS by Mail. A copy of those Interrogatories, including
25 Proof of Service, is attached as **Exhibit A** and incorporated by reference.

Supporting Declaration, ¶12. However, given the attached meet and confer letter and statement regarding service of the RFAs made under oath in the Supporting Declaration the Court finds the subject RFAs were served, notwithstanding the lack of an accompanying Proof of Service.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. Plaintiff engaged in meet and confer efforts and Defendant did not respond to those communications and did not provide responses to the RFAs.
4. No opposition or other responsive pleadings by Defendant have been filed with the

Court.

Sanctions

1. Defendant's failure to respond to the RFAs even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).
2. Defendant's failure to respond to meet and confer efforts regarding the RFAs constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).
3. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the RFAs, the Court finds that Defendant did not act with substantial justification.
4. Moreover, monetary sanctions are mandatory pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(c).

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 5 and RFA Nos. 7 through 9 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 6, is DEEMED ADMITTED by Defendant.
4. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$360.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the Supporting Declaration. The Monetary Sanctions shall be paid within thirty (30) days from notice of entry of this order.
5. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: L23-04878
CASE NAME: DISCOVER BANK VS. JOSIAH RAMIREZ
***HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO CCP 6646**
FILED BY: DISCOVER BANK

TENTATIVE RULING:

Plaintiff Discover Bank (“Plaintiff”) filed a Motion to Enter Judgment on September 24, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 2, 2025.

Background

The parties entered into that certain settlement agreement filed on January 26, 2024 (the “Settlement Agreement”), the terms of which included payment by the defendant Josiah Ramirez (“Defendant”) in the amount of \$11,303.03, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Plaintiff’s Counsel filed September 24, 2025 (“Supporting Declaration”), ¶4 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the amount of \$16,078.28 plus costs in event of a default. *Id.*, **Exhibit A**, ¶¶2-3 and 6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶6.

After credit for amounts paid, there remains \$12,310.68 due and owing, plus costs of \$505.70. See Supporting Declaration, ¶7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$12,310.68, plus costs of \$505.70, for a total judgment of \$12,816.38.
4. Plaintiff to submit revised forms of order and money judgment which appropriately designate plaintiff’s current legal name (e.g. “Capital One, N.A., successor by merger to Discover Bank”). If no order for leave to amend plaintiff’s name has been previously been entered, leave is hereby granted and the operative complaint deemed so amended. The proposed order shall recite such amendment. The Court takes judicial notice of the “NOTICE OF PLAINTIFF MERGER” filed in multiple pending cases before the Court regarding the merger.

CASE NAME: WELLS FARGO BANK, N.A. VS. CANDIS SPENCER

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: DONALD L. COX**

FILED BY: SPENCER, CANDIS

TENTATIVE RULING:

Donald L. Cox (“Counsel”) filed a Motion to be Relieved as Counsel on September 8, 2025 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on December 2, 2025.

Background

Counsel seeks to be relieved as attorneys for defendant Candis Spencer (“Defendant”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to “[i]rreconcilable differences,” lack of communication and non-payment of fees. See Declaration filed September 8, 2025, ¶2 and Attachment 2. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: L24-05801

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. YAMESE PARKERSMITH

***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT UNDER STIP FILED BY PLNTF ON 8/7/25**

FILED BY:

TENTATIVE RULING:

Plaintiff Portfolio Recovery Associates, LLC (“Plaintiff”) filed a Motion to Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

Plaintiff appeared and confirmed that notice of the hearing date had not been given to Defendant and, therefore, the Court continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice has properly been given to the Defendant. **Plaintiff was ordered to give notice to Defendant of this continued hearing date on the pending motion. See Order entered November 10, 2025.**

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. **An Amended Notice of Motion now appears on the Court's docket with a filing date of October 3, 2025, with notice of the prior October 28, 2025 date. However, no further Amended Notice of Motion appears with notice of the current December 2, 2025 hearing date.**

Background

The parties entered into that certain settlement agreement filed on November 1, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Yamese Parkersmith ("Defendant") in the amount of \$4,354.42 plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Request for Judicial Notice filed August 7, 2025 ("RJN"), **Exhibit B**, Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶4. Defendant failed to cure after notice. *Id.* at ¶5 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$4,154.42 due and owing, plus costs of \$495.61, for a total of \$4,650.03. See Supporting Declaration, ¶¶6-7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was served with notice of the new hearing date.**
2. Subject to paragraph no. 1 above, The Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to paragraph no. 1 above, The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$4,154.42, plus costs of \$495.61, for a total judgment of \$4,650.03.
4. Subject to paragraph no. 1 above, Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

7. 9:00 AM CASE NUMBER: L24-06847
CASE NAME: CITIBANK N.A. VS. SAVANNAH MELGAR
*HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT OF STIP FILED BY PLN ON
09/16/2025
FILED BY: CITIBANK N.A.
TENTATIVE RULING:

Plaintiff Citibank, N.A. ("Plaintiff") filed a Motion to Enter Judgment under Terms of Stipulated Settlement on September 16, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 2, 2025.

Background

The parties entered into that certain settlement agreement filed on December 18, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Savannah Melgar ("Defendant") in the amount of \$2,826.75, subject to potential reduction, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶4. Defendant failed to cure after notice. *Id.* at ¶5 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$1,626.75 due and owing, plus costs of \$603.61. See Supporting Declaration, ¶¶6-7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$1,626.75, plus costs of \$603.61, for a total judgment of \$2,230.36.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

8. 9:00 AM CASE NUMBER: L24-09682
CASE NAME: BANK OF AMERICA, N.A. VS. MELISSA WELLBORN
***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF ATTY ON**
09/19/2025
FILED BY:
TENTATIVE RULING:

Timothy Reed (“Counsel”) filed a Motion to be Relieved as Counsel on September 19, 2025 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on November 25, 2025.

Background

Counsel seeks to be relieved as attorneys for defendant Melissa Wellborn (“Defendant”). The supporting declaration filed by Counsel indicates that “Client has canceled Attorney’s services.” See Declaration filed September 19, 2025, ¶2. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: L24-10510
CASE NAME: BANK OF AMERICA, N.A. VS. CRYSTAL MAGDALENO
***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PLN ON**
09/19/2025
FILED BY: BANK OF AMERICA, N.A.
TENTATIVE RULING:

Plaintiff Bank of America, N.A. (“Plaintiff”) filed a Motion for Judgment on the Pleadings on September 19, 2025 (the “Motion for Judgment on the Pleadings”). The Motion for Judgment on the Pleadings was set for hearing on December 2, 2025. The motion is unopposed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative

complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Crystal A Magdaleno (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291.

Plaintiff’s Complaint alleges a single cause of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$2,570.85 on a credit card account. See Complaint filed November 27, 2024, p. 2, ¶¶8-10 and Attachment (First Cause of Action), p. 1, ¶¶ BC-1 through BC-4.

Defendant’s Answer was filed February 5, 2025. The Answer does not deny any of the allegations of the Complaint. See Answer filed February 5, 2025. Box 3.a. of the Answer form (general denial) is not checked. *Id.* Box 3.b. of the Answer form (admission with specific denials) is checked. *Id.* However, no exceptions are stated contending any particular allegations of the Complaint are untrue. *Id.* Rather, Defendant affirmatively acknowledged liability for the debt, asking to make smaller payments by writing the following at Paragraph 6:

Let me make smaller payments over time.

Answer, p. 2, ¶6.

No other denials or cognizable affirmative defenses are set forth in the Answer. Box 4 regarding any affirmative defenses is checked but only states “My income changes month to month.” Answer, p. 2, ¶4.

Even liberally construing the pleading filed by a self-represented litigant, it is evident that Defendant admits the fact of the debt and does not state any cognizable defense to the liability. While the expressed desire to want to work about a payment arrangement is a laudable one, that does not change the plain conclusion that the Answer does not state facts sufficient to constitute a defense to the Complaint.

The Motion for Judgment on the Pleadings was unopposed.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff’s Complaint states facts sufficient to constitute a cause or causes of action against the Defendant and Defendant’s Answer does not state facts sufficient to

constitute a defense to the Complaint.

2. Defendant became indebted in the amount of \$2,570.85 on the subject credit card account (the “Debt”).
3. Plaintiff is entitled to judgment as a matter of law against Defendant on the Complaint.

Costs

As part of the moving papers, a Memorandum of Costs was filed September 19, 2025. The Memorandum of Costs reflects recoverable costs in the sum of \$358.61.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of judgment was lodged with the Court which the Court shall execute and enter.

10. 9:00 AM CASE NUMBER: L25-02849
CASE NAME: JASMANE HAYES VS. WILLOW GLEN APARTMENTS
***HEARING ON MOTION IN RE: MOTION TO QUASH FILED BY DEF RELIANT PROPERTY**
MANAGEMENT, INC ON 09/18/2025
FILED BY: RELIANT PROPERTY MANAGEMENT
TENTATIVE RULING:

Reliant Property Management, Inc., erroneously named herein as “RELIANT PROPERTY MANAGEMENT” (“Reliant”) filed a Motion to Quash Service of Process on September 18, 2025 (the “Motion to Quash”). The Motion to Quash was set for hearing on December 2, 2025. The motion is opposed.

Background

Plaintiff Jasmane Hayes (“Plaintiff”) filed this action on March 12, 2025, alleging multiple causes of action stemming from allegations that the named defendants induced her to vacate her apartment at the “Willow Glen Apartments” in Hercules, California, by agreeing to waive certain rents and then reneging on the agreement after Plaintiff vacated. See Complaint for Damages filed March 12, 2025 (the “Complaint”), ¶1 *et seq.*

The named defendants include:

1. “WILLOW GLEN APARTMENTS”
2. “RELIANT PROPERTY MANAGEMENT”
3. “DOES 1-100”

See Complaint, p. 1 (caption).

“WILLOW GLEN APARTMENTS” is described in the Complaint as a “a residential apartment complex located at...” See Complaint, ¶12. It is not alleged to be a person or entity. *Id.*

There is an apparent screenshot in the body of the Complaint as to the nature of “RELIANT PROPERTY MANAGEMENT.”



Id.

A purported proof of service was filed August 15, 2025 by Plaintiff as to defendant “WILLOW GLEN APARTMENTS.” See Proof of Service of Summons filed August 15, 2025 (the “Willow Glen POSS”). The person served on behalf of this named defendant is stated as “Trevor Mirkes, Agent” by substitute service on “Ashley Ortiz” at “1231 willow ave, Hercules, CA 94547” on June 3, 2025, as the “Property Manager, Person apparently in charge.” *Id.* at ¶¶3-5. Service was done by a registered process server. *Id.* at ¶7.

Reliant’s Motion to Quash contends that service of process is defective because “WILLOW GLEN APARTMENTS” is “an apartment complex; it is not an entity capable of being sued nor served with process” and that the efforts to serve Reliant have been defective for various reasons. See Reliant’s Memorandum of Points and Authorities filed on September 18, 2025 (“Reliant’s MPA”).

Reliant asserts that no person or entity authorized to be served on Reliant’s behalf was served with a Summons and related papers in proper form. See Declaration of Zachary Z. Hardister, (“Supporting Declaration”), ¶1 *et seq.*

Analysis

Code of Civil Procedure section 418.10 sets forth a number of different procedural actions that a defendant may take on or before the last day of his or her time to plead (or as otherwise allowed by the court). See Code Civ. Proc. § 418.10(a). Notably, it is the named defendant (or cross-defendant) that has these procedural remedies, not another party. *Id.*

Accordingly, Reliant does not have standing to raise deficiency of service on behalf of “WILLOW GLEN APARTMENTS.” Indeed, Reliant’s motion is quite clear that it contends that “WILLOW GLEN APARTMENTS” is not a legal entity. If true, as it appears to be, then this is simply a defect in the nature of Plaintiff’s stated claims that the Court can consider if and when it considers whether Plaintiff has proved up a claim as against “WILLOW GLEN APARTMENTS.”

As to Reliant itself, no proof of service has been filed to date purporting to reflect service of process on Reliant. The first service attempt described in Reliant’s papers was service purported to be made upon Reliant at the subject apartment complex. Supporting Declaration, ¶4 and **Exhibit B**. The details of such service are unclear. A second service attempt is described as service on August 18, 2025 on “Gladis Flores,” an employee of

“Cornerstone Residential Management,” apparently at another property location in Pittsburg, California. Supporting Declaration, ¶5 and **Exhibit B**.

An Opposition paper was filed on behalf of Plaintiff.* See Opposition filed on October 3, 2025 (“Plaintiff’s Opposition”). Although Plaintiff’s Opposition makes lengthy arguments, importantly, it fails to identify any filed proof of service of process on Reliant. While Plaintiff asserts confusion over the correct entity to sue, that is not the issue. Whatever entity or entities Plaintiff chooses to sue, Plaintiff must effect service of process on a person or entity authorized to be served for such entity or entities under the Code of Civil Procedure. The Court has considered and rejects the contentions that Reliant has somehow made a general appearance.

As it stands, and as noted above, no proof of service has been filed as to Reliant. There has been no showing of proper service of process on Reliant. Plaintiff is, of course, free to continue efforts to complete proper service on Reliant and to then file a Proof of Service of Summons as to Reliant.

Whether the omission of “, Inc.” from the Reliant’s name in the operative Complaint and Summons—“RELIANT PROPERTY MANAGEMENT” versus “Reliant Property Management, Inc.”—would render service defective in and of itself is another question which the Court need not address since there has been a failure to show proper service otherwise on Reliant. However, such a minor defect is unlikely to void otherwise proper service. See *Billings v. Edwards* (1979) 91 Cal.App.3d 826, 831 (“The complaint sometimes designates a defendant by a name *misspelled* or otherwise *erroneous* (see Pleading, § 363), and this mistake may be carried into the summons. However, if the service is otherwise properly made, and the person served is aware that he is the person named as a defendant in the erroneous manner, jurisdiction is obtained...”).

*The Court notes that Plaintiff’s Opposition was filed by Plaintiff’s attorney of record Reshma Kamath. The Court notes that the State Bar Court of California entered an Order dated October 20, 2025, enrolling Plaintiff’s attorney as an inactive attorney of the State Bar of California pending further disbarment proceedings (the “State Bar Court Order”). The Court takes judicial notice of the State Bar Court Order. The Court considers the written Opposition filed before the foregoing State Bar Court Order. However, Plaintiff’s attorney will not be permitted to appear and argue on the motion. Plaintiff is given notice that other arraignments must be made for representation or Plaintiff may appear in pro per to be heard if Plaintiff chooses to do so.

Disposition

The Court further finds and orders as follows:

1. The Motion to Quash is GRANTED IN PART and DENIED IN PART.
2. The Motion to Quash is GRANTED as to Reliant and all prior service attempts on Reliant are hereby QUASHED.
3. The Motion to Quash is DENIED as to “WILLOW GLEN APARTMENTS.”

11. 9:00 AM CASE NUMBER: L25-03003
CASE NAME: WELLS FARGO BANK, NA VS. IRANIA DELA MORA
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: WELLS FARGO BANK, NA
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion for Judgment on the Pleadings on September 23, 2025 (the “Motion for Judgment on the Pleadings”). The Motion for Judgment on the Pleadings was set for hearing on December 2, 2025. The motion is unopposed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Irania De La Mora (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291.

Plaintiff’s Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$8,083.88 on a credit card account. See Complaint filed March 24, 2025, p. 2, ¶¶ 8 an 10 and Attachments (First and Second Causes of Action), ¶¶ BC-1 through BC-4.

Defendant’s Answer was filed June 27, 2025. The Answer does not deny any of the allegations of the Complaint. See Answer filed June 27, 2025. Box 3.a. of the Answer form (general denial) is not checked. *Id.* Box 3.b. of the Answer form (admission with specific denials) is checked. *Id.* However, no exceptions are stated contending any particular allegations of the Complaint are untrue. Rather, Defendant affirmatively acknowledged liability for the debt, writing that Defendant is “seeking forgiveness from my debts...” Answer, p. 2, ¶4.

No other denials or affirmative defenses are set forth in the Answer. Box 4 regarding any affirmative defenses only addresses Defendant’s financial circumstances. Answer, p. 2, ¶4.

Even liberally construing the pleading filed by a self-represented litigant, it is evident that Defendant admits the fact of the debt and does not state any cognizable defense to the liability. While Defendant expresses a desire for the creditor to forgive the debt, that does not change the plain conclusion that the Answer does not state facts sufficient to constitute a defense to the Complaint.

The Motion for Judgment on the Pleadings was unopposed.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff's Complaint states facts sufficient to constitute a cause or causes of action against the Defendant and Defendant's Answer does not state facts sufficient to constitute a defense to the Complaint.
2. Defendant became indebted in the amount of \$8,083.88 on the subject credit card account (the "Debt").
3. Plaintiff is entitled to judgment as a matter of law against Defendant on the Complaint.

Costs

Plaintiff seeks an award of \$285.00 for recoverable court costs. No memorandum of costs was filed as part of the moving papers. Nor were any recoverable court costs sufficiently itemized in any supporting declaration(s). Any recoverable costs may be sought by a timely filed memorandum of costs or otherwise in accordance with applicable law. In the alternative, Plaintiff's counsel may appear to be sworn and testify as to the costs incurred.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of judgment was lodged with the Court which the Court shall execute and enter.

12. 9:00 AM CASE NUMBER: L25-03679
CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER
HEARING IN RE: MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS & TO SERVE LATE
FILED BY: GARDNER, TENISHA M
TENTATIVE RULING:

Defendant Tenisha M Gardner ("Defendant") filed a Motion for Relief from Waiver of Objections to Interrogatories and for Leave to Serve Late Responses on October 9, 2025 (the "Motion for Relief from Waiver"). The Motion for Relief from Waiver was set for hearing on December 2, 2025.

The Court notes that there is a separate pending Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted filed October 6, 2025 by plaintiff Bank of America, N.A. (“Plaintiff”) which is set for hearing on December 16, 2025 (the “Motion to Deem Admissions”).

Background

Plaintiff served Defendant with a set of Form Interrogatories (the “Form Interrogatories”) on June 18, 2025. See Declaration of Tenisha M Gardner (the “Supporting Declaration”), ¶12. A copy of the Form Interrogatories was not attached to the motion papers, nor was a proof of service as to the Form Interrogatories. However, Defendant recites that her deadline to respond was July 23, 2025. *Id.*

Defendant indicates that she failed to timely respond to the Form Interrogatories due to “calendar confusion, family emergencies, health issues and work schedule.” Supporting Declaration, ¶13. She attributes the failure to respond to “excusable neglect and inadvertence on [Defendant’s] part.” *Id.* at ¶14.

After realizing the oversight on October 4, 2025, she prepared responses and served those responses with her motion papers. See Supporting Declaration, ¶¶15-6. She notes that the trial is in “early discovery” and no trial date has been set. *Id.* at ¶¶8-9.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party fails to respond to interrogatories propounded upon it, the party waives all objection to the interrogatories. Code Civ. Proc. § 2030.290(a); see CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2024) (“CJER Civ. Pro.—Discovery”), § 17.24.

However, on motion, the Court may set aside that waiver if the responding party failed to serve a timely response because of mistake, inadvertence, or excusable neglect, and has meanwhile served a response. Code Civ. Proc. § 2030.290(a) (“The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240. [¶] (2) The party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.”); see CJER Civ. Pro.—Discovery, § 17.24.

Plaintiff, the party propounding the subject Form Interrogatories, did not file any opposition

papers and has not made any showing that the responses to the Form Interrogatories served by Defendant were not substantially compliant with the applicable statutory requirements.

Accordingly, the Court finds that Defendant is entitled to relief from waiver of objections to the subject Form Interrogatories pursuant to Code of Civil Procedure section 2030.290.

Disposition

The Court further finds and orders as follows:

1. The Motion for Relief from Waiver is GRANTED.
2. **In light of the foregoing and in the exercise of the Court's inherent authority and discretion to control the proceedings pending before it, the parties are ordered to meet and confer regarding the Motion to Deem Admissions.** See Code Civ. Proc. § 2033.280(a) ("The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. [¶] (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect."); see also Code Civ. Proc. § 2033.280(c); CJER Civ. Pro.—Discovery, § 21.22 (a responding party's service, before the hearing on a "deemed admitted" motion, of substantially complaint responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted).

13. 9:00 AM CASE NUMBER: L25-10974
CASE NAME: MICHAEL MCWHORTER VS. EF GOMEZ CEMENT CONTRACTOR INC,
HEARING IN RE: PTN RE: CCP 8480 FOR ORDER RELEASING REAL PRPTY FROM MECHANICS LIEN
FILED BY: MCWHORTER, MICHAEL C.
TENTATIVE RULING:

Petitioners Michael C. McWhorter and Jame D. McWhorter, as Trustees of the McWhorter Trust ("Petitioners") filed a Petition and Declaration under California Civil Code Section 8480 for Order Releasing Real Property from Mechanics Lien on September 15, 2025 (the "Petition"). That Petition was set for a hearing date of December 2, 2025.

A Proof of Service of Summons was filed on October 23, 2025 reflecting service of the Summons, Petition and related papers on October 22, 2025 on respondent EF Gomez Cement Contractor, Inc. ("Respondent").

Background

Petitioner's Petition seeks the release of a Mechanics' Lien recorded on the subject real property commonly known as 112 Amber Valley, Orinda, California (the "Subject Real Property") on or about April 29, 2025 (the "Mechanics' Lien") because Petitioner alleges that Respondent failed to bring an action to enforce the lien within 90 days after the

recording of the claim of lien.

Analysis

The owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460. Civ. Code § 8480. Such petition is set for hearing within thirty (30) days by the Court. *Id.* at § 8486(a).

The petitioner must serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. *Id.* at § 8486(b). Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108. *Id.*

At the hearing both (1) the petition and (2) the issue of compliance with the service and date for hearing requirements of this article are deemed controverted by the claimant. *Id.* at § 8488(a). The petitioner has the initial burden of producing evidence on those matters. *Id.* The petitioner has the burden of proof as to the issue of compliance with the service and date for hearing requirements of the statute. *Id.* The claimant has the burden of proof as to the validity of the lien. *Id.*

If judgment is in favor of the petitioner, the court shall order the property released from the claim of lien. *Id.* at § 8488(b). The prevailing party is entitled to reasonable attorney's fees. *Id.* at § 8488(c).

Petitioners have not, at this stage, carried their burden to proffer evidence to establish a prima facie basis for Petitioner's entitlement to an order, pursuant to Civil Code sections 8480 and 8490, to release the subject real property from the claim of lien because the claimant has not commenced an action to enforce the lien within the statutory time period.

While this showing may be made by a verified petition, the subject Petition is not verified, in violation of Civil Code section 8484. See Civ. Code § 8484 ("A petition for a release order **shall be verified...**") (emphasis added). This lack of verification was not cured by tendering of a supporting declaration under penalty of perjury. Therefore, Petitioners have not carried their burden of production of evidence.

Nonetheless, it appears from a Supplemental Reply filed November 24, 2025 ("Supp. Reply") that a consensual Release of Mechanics Lien was tendered and recorded by Respondent since the filing of the pending Petition. This renders the Petition moot, except for the issue of attorneys' fees and costs.

Petitioners seek an award of attorneys' fees and costs in the total amount of \$2,482.50. See Supp. Reply, ¶¶2-4.

Because the Court is not finding in favor of the Petitioners on the Petition and entering judgment on the Petition in their favor, one might argue that Petitioners are not the prevailing parties pursuant to Civil Code section 8488. See Civ. Code § 8488(b) and (c).

Civil Code section 8488 is silent on whether a petitioner is entitled to attorneys' fees and costs in the case of a pre-judgment dismissal of the petition because the matter is mooted by the voluntary filing of a lien release by the respondent.

Generally, however, it is well established that a court may award statutory prevailing party attorneys' fees even when an action does not result in a favorable final judgment. *Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 565 ("Our prior cases uniformly explain that an attorney fee award may be justified even when plaintiff's legal action does not result in a favorable final judgment."); see also *Winick Corp. v. Safeco Ins. Co.* (1986) 187 Cal.App.3d 1502, 1507 ("prevailing party" has been defined in many contexts to allow attorney fee awards even where there has been no decision on the merits.). This includes cases where a plaintiff's action has become moot because they effectively achieved the relief they sought. *Graham v. DaimlerChrysler Corp.*, supra, 34 Cal.4th at 565-566 (citing *Press v. Lucky Stores, Inc.* (1983) 34 Cal.3d 311).

The trial court, in its discretion, must pragmatically assess the litigation and determine whether or not a fee claimant has achieved its purposes in the litigation. See *Winick Corp. v. Safeco Ins. Co.*, supra, 187 Cal.App.3d 1502, 1507 (interpreting former Civil Code section 3250) (the courts have held that "the inquiry as to a party's success must be a pragmatic one that may range outside the merits of the underlying dispute," and that the "focus might well be on establishing the precise factual/legal condition that the fee claimant has sought to change or affect."); see also *Coltrain v. Shewalter* (1998) 66 Cal.App.4th 94, 107 (in determining prevailing party following voluntary dismissal of alleged SLAPP suit, "the critical issue is which party realized its objectives in the litigation).

The Court has considered and finds that Petitioners have achieved their purposes in the litigation by way of securing the voluntary lien release, notwithstanding the action having become moot as a result. Therefore, the Court finds that Petitioners are the prevailing parties entitled to recover attorneys' fees, as well as their costs.

The request for fees and costs is supported by the Supp. Reply. The Supp. Reply includes a summary of the legal services rendered and expenses incurred in the litigation of the matter. See Supp. Reply, ¶¶2-4. The Court has considered the 4.3 hours of legal work described and is familiar with the scope of the pleadings prepared and filed. The Court finds that the fees and costs incurred were reasonable given the nature and scope of the issues in the case.

Disposition

The Court finds and orders as follows:

1. The Petition is DENIED and the action DISMISSED as moot.
2. Petitioners to recover attorneys' fees in the amount of \$2,257.50 and costs in the amount of \$225.00, as against Defendant.
3. Petitioners to prepare a Judgment of Dismissal.

14. 9:00 AM CASE NUMBER: MSL17-02593

CASE NAME: WELLS FARGO VS LEE

*HEARING ON MOTION IN RE: MOTION TO VACATE DIMISSAL AND ENTER JUDGMENT

FILED BY:

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion to Vacate Dismissal under C.C.P. § 664.6 & Enter Judgment Pursuant to Stipulation on August 6, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

The Court previously continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice of the hearing has properly been given to the Defendant. Plaintiff was ordered to give notice of the new hearing date to Defendant forthwith. See Order entered November 12, 2025. Notice of the Court's tentative ruling and the hearing date on the motion was duly given to Defendant.

Defendant has not filed any opposition.

Background

The parties entered into that certain settlement agreement filed on June 1, 2021 (the "Settlement Agreement"), the terms of which included payment by the defendant Rene J Lee ("Defendant") in the amount of \$4,676.00 plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of David Bartley filed August 6, 2025 ("Supporting Declaration"), ¶¶3-4 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit 1**, ¶¶1-2 and 8-10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶15. Defendant failed to cure after notice. *Id.* at ¶16 and **Exhibit 2** thereto.

After credit for amounts paid, there remains \$1,976.00 due and owing, plus costs of \$294.50, for a total of \$2,270.50. See Supporting Declaration, ¶¶8-10.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$1,976.00, plus costs of \$294.50, for a total judgment of \$2,270.50.

4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

15. 9:00 AM CASE NUMBER: MSL21-00545

CASE NAME: CITIBANK, N.A. VS. MABEL ORTIZ

*HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATED SETTLEMENT

FILED BY: CITIBANK, N.A.

TENTATIVE RULING:

Plaintiff Citibank, N.A. ("Plaintiff") filed a Motion to Vacate Dismissal and Enter Judgment on September 24, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 2, 2025.

Background

The parties entered into that certain settlement agreement filed on August 16, 2021 (the "Settlement Agreement"), the terms of which included payment by the defendant Mabel Ortiz ("Defendant") in the amount of \$9,842.48 plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Request for Judicial Notice filed September 24, 2025, **Exhibit B**, Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶5. Defendant failed to cure after notice. *Id.* at ¶6 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$548.00 due and owing, plus costs of \$577.00. Memorandum of Costs filed September 24, 2025; see also Supporting Declaration, ¶¶7-8.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$548.00, plus costs of \$577.00, for a total judgment of \$1,125.00.

4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.